

TITLE 1 GENERAL GOVERNMENT ADMINISTRATION
CHAPTER 4 STATE PROCUREMENT
PART 4 GOVERNMENTAL ADVERTISING RATES

1.4.4.1 ISSUING AGENCY: General Services Department - State Purchasing Division.
[02-15-99; 1.4.4.1 NMAC - Rn, 1 NMAC 1.1.1 & A, 11-15-05]

1.4.4.2 SCOPE: All legal notices or advertisements that a governmental entity is required by law, or by the order of any court of record in this state, to publish in newspapers.
[02-15-99; 1.4.4.2 NMAC - Rn, 1 NMAC 1.1.2, 11-15-05]

1.4.4.3 STATUTORY AUTHORITY: Section 14-11-7 NMSA 1978 was amended by Laws of 1993, Chapter 25, to legalize all notices or advertisements that a governmental entity is required by law, or by the order of any court of record in this state, to publish in newspapers.
[02-15-99; 1.4.4.3 NMAC - Rn, 1 NMAC 1.1.3, 11-15-05]

1.4.4.4 DURATION: Permanent.
[02-15-99; 1.4.4.4 NMAC - Rn, 1 NMAC 1.1.4, 11-15-05]

1.4.4.5 EFFECTIVE DATE: February 15, 1999 unless a later date is cited at the end of a section.
[02-15-99; 1.4.4.5 NMAC - Rn, 1 NMAC 1.1.5 & A, 11-15-05]

1.4.4.6 OBJECTIVE: The rule authorizes the general services department to establish a reasonable rate or rates to be paid to newspaper publishers for publication.
[02-15-99; 1.4.4.6 NMAC - Rn, 1 NMAC 1.1.6, 11-15-05]

1.4.4.7 DEFINITIONS: [RESERVED]

1.4.4.8 PURPOSE: This rule implements the mandated requirements of Section 14-11-7 NMSA 1978, as amended, and as outlined in 1.4.4.3 NMAC of this rule, the newspaper publisher is entitled to receive no more than:
A. \$.63 cents (\$.63) for each column line of eight point or smaller type for the first insertion; and
B. \$.49 cents (\$.49) per line of each subsequent insertion;
C. all emblems, display headings, rule work and necessary blank spaces shall be calculated as solid type and shall be counted and paid for as such.
[02-15-99; 1.4.4.8 NMAC - Rn, 1 NMAC 1.1.8 & A, 11-15-05; A, 05-14-09; A, 06-15-09]

1.4.4.9 RATE REVIEW: For the purpose of addressing changes in economic conditions within the newspaper industry, as well as the general economy and inflation, the rate or rates set forth in 1.4.4.3 NMAC of this rule shall be reviewed annually by the secretary of the general services department. If necessary, the rate or rates shall be adjusted annually to reflect and maintain a current and reasonable rate to be paid to newspaper publishers.
[02-15-99; 1.4.4.9 NMAC - Repealed, 11-15-05 & Rn, 1 NMAC 1.1.10, 11-15-05]

HISTORY of 1.4.4 NMAC:

Pre-NMAC History: The material in this part was derived from that previously filed with the state records and archives under:

GSD 93-620, Governmental Advertising Rates, filed 09-22-93;
GSD 95-620, Governmental Advertising Rates, filed 06-28-95.

History of Repealed Material: [RESERVED]

Other History:

GSD 95-620, Governmental Advertising Rates (filed 06-28-95) renumbered, reformatted and replaced by 1 NMAC 1.1, Governmental Advertising Rates, effective 02-15-99.
1 NMAC 1.1, Governmental Advertising Rates (filed 01-22-99) renumbered, reformatted, amended, and replaced by 1.4.4 NMAC, Governmental Advertising Rates, effective 11-15-05.